



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2053: appropriation; stormwater recharge mapping; sites

GRIFFIN FLOOR AMENDMENT

1. Adjusts, from 180 days after the effective date to within one year after the effective date, the time frame in which ADWR is required to coordinate with outlined agencies and entities to create an updated map of potential stormwater recharge sites.
2. Expands the list of agencies and entities with which ADWR must coordinate and outlines the purposes for the coordination.
3. Strikes language that disqualified certain stormwater recharge sites from being mapped and replaces it with language requiring that mapped sites *would not, if developed, capture appropriable surface water*.
4. Removes language that disqualified certain stormwater recharge sites from being mapped if they included streams or natural channels subject to a general adjudication of water rights or lands that stormwater may run off of and enter a stream or natural channel before evaporation.
5. Adds *unappropriated* to the section's definition of *stormwater*.

GRIFFIN SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2053

I move the following SUBSTITUTE amendment to the NATURAL RESOURCES, ENERGY & WATER
Committee Amendment to
HOUSE BILL 2053 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Appropriation; department of water resources;
3 stormwater recharge mapping; definition

4 A. The sum of \$100,000 is appropriated from the state general fund
5 in fiscal year 2026-2027 to the department of water resources for updated
6 stormwater recharge mapping.

7 B. Within one [hundred eighty days] [year] after the effective date
8 of this section, the department of water resources shall [cooperate with
9 an agricultural improvement district established pursuant to title 48,
10 chapter 17, Arizona Revised Statutes, and the state natural resource
11 conservation board established by section 41-6011, Arizona Revised
12 Statutes, to provide] [create] an updated map of potential stormwater
13 recharge sites in this state that [do not conflict with existing surface
14 water rights] [would not, if developed, and in the director's sole
15 discretion pursuant to Title 45, Chapter 1, Article 5, Arizona Revised
16 Statutes, appropriate appropriable or appropriated surface water or
17 conflict with vested rights under Title 45, Chapter 1, Article 5, Arizona
18 Revised Statutes].

19 C. The updated stormwater recharge map shall identify the location
20 of potential stormwater recharge sites in this state that meet all of the
21 following criteria:

22 1. Are located on any lands in this state, including public and
23 private lands.

24 2. Have optimum soil conditions for stormwater infiltration and
25 groundwater recharge. [The director shall coordinate with the state
26 natural resource conservation board established by section 41-6011,

1 Arizona Revised Statutes, for the purposes of identifying the locations
2 with ideal soil conditions for stormwater infiltration.]

3 ~~[3. Do not include streams or natural channels that are subject to~~
4 ~~a general adjudication of water rights pursuant to title 45, chapter 1,~~
5 ~~article 9, Arizona Revised Statutes, or lands that stormwater may run off~~
6 ~~of and enter a stream or natural channel before evaporation]~~

7 [3. Would not, if developed, and in the director's sole discretion
8 pursuant to Title 45, Chapter 1, Article 5, Arizona Revised Statutes,
9 appropriate appropriable or appropriated surface water or conflict with
10 vested rights, under Title 45, Chapter 1, Article 5, Arizona Revised
11 Statutes].

12 D. For the purposes of this section, "stormwater" means
13 [unappropriated] rainwater runoff that does not enter a stream or natural
14 channel ~~[and]~~ [or] that is otherwise lost to evaporation.

15 Enroll and engross to conform

16 Amend title to conform

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